

Ms. Neelam W/O Sh. Vijay Matta vs Sh. Vijay Matta S/O Sh. Manohar Lal Matta on 1 March, 2021

IN THE COURT OF MS NEENA BANSAL KRISHNA
PRINCIPAL DISTRICT & SESSIONS JUDGE
SOUTH EAST: SAKET COURT, NEW DELHI

CA No. 160/2019

Ms. Neelam W/o Sh. Vijay Matta
D/o Sh. Rajender Prasad Tewari
115-A, Second Floor,
Hari Nagar Ashram, New Delhi - 110014

..... Appellant/
Complainant

Versus

Sh. Vijay Matta S/o Sh. Manohar Lal Matta
R/o: House No. 60, Jawahar Nagar,
Near Sindhu Bhawan, Udaipur,
Rajasthan - 313001

2nd Address:
Shop No. 4, Oswal Bhawan,
Anjuman Masjd Chowk, Udaipur,
Rajasthan - 313001

..... Respondent

First date before this Court: 20.03.2019
Date of Decision: 01.03.2021

ORDER :

1. An appeal under Section 29 of The Protection of Women from Domestic Violence Act, 2005 (hereinafter referred as "the Act") has been filed by the Appellant/Complainant for setting aside the Order dated 31.01.2019 vide which the application of the Appellant/Complainant for claiming interim maintenance has been dismissed.

NEELAM Vs. VIJAY MATTA

2. The facts in brief are that the Appellant/Complainant Ms. Neelam got married to the Respondent Sh. Vijay Matta on 21.04.2015 at Gayatri Mandir, Udaipur, Rajasthan according to Hindu Rites and Ceremonies. The Respondent was a widower and had a son & daughter who were residing with him. After the marriage the parties residing together as husband and wife at House No. 60, Jawahar Nagar, Opposite Sindhu Bhawan, near Railway Station, Udaipur, Rajasthan and had no child from the said wedlock. According to the Appellant/Complainant Rs. 12 lacs were spent in the marriage including the stridhan of about 5,50,000/- which was entrusted to the Respondent at the time of marriage. However, the Respondent was not satisfied and used to taunt the Appellant/Complainant by saying "hamme tere jaise kangal khandan ki ladki se galat shadi kar di hai" and also called her as kangli many times. Complainant felt humiliated, mortified, disgraced, embarrassed, cheated and physically tortured by the Respondent and other family members and she was left with no

alternative except to leave the matrimonial home on 24.08.2016 in order to save her life.

3. Appellant/Complainant has claimed that the Respondent had represented at the time of marriage that he had studied up to Class 12th and was a widower aged about 37 years of age and had no children. He also represented that he was doing his own separate business of finance and crockery shop apart from the joint business of wholesale crockery, and was affluent and prosperous. The Appellant/Complainant had further asserted that though the NEELAM Vs. VIJAY MATTA matrimonial home was huge, but after the marriage when she reached the matrimonial home, she was shown a small room which was being used as store to be her place of residence. Directions were also given to the Appellant/Complainant not to have any physical relationship with the Respondent/Husband for procreation of any child as it would affect her health and family also they did not require any more child as there were already other children in the family. She however, became pregnant but because of the misbehavior and the beatings given to her, she suffered miscarriage.

4. Appellant/Complainant further claimed that she had been subjected to humiliation and told that she had been brought into the family only for work as maid servant. Various atrocities were committed on her, but she continued to bear the same in the hope that someday the things would work out in her matrimonial home. It is further submitted that on 15.08.2016 she came to know that Respondent has a son Rahul, student of 11th class and a daughter Ayushi, student of 7th class. When she protested on knowing about the children, she was mercilessly beaten. She went into severe depression and came back to her parental home at Sahibabad, Ghaziabad, Uttar Pradesh.

5. Appellant/Complainant has asserted that Respondent never maintained and provided her with clothes and food and treated her worse than a maid in the matrimonial home. She has further asserted that she is an educated woman, though a housewife having no independent source of income. She is, therefore, entitled to be maintained by the Respondent, who is having flourishing finance NEELAM Vs. VIJAY MATTA business and flourishing crockery business having an income of 2 lacs per month aside from being the owner of several houses and godowns. Hence, an interim maintenance in the sum of Rs. 40,000/- under Section 23 of D. V. Act was claimed by the appellant.

6. The Respondent/husband filed a detailed reply and refuted all the averments made by the Appellant/Complainant. He denied that he was earning Rs. 2 lacs, as was claimed. He also denied having any property or share in any property, as alleged by the Appellant/ Complainant. He stated that he had studied till 10th class and was working in a shop of his elder brother and earning Rs. 6,000/- per month. He also filed an affidavit of his brother. He further asserted that from his monthly earnings of Rs. 6,000/- he is also maintaining his two minor children from the first marriage. He further asserted that Appellant/Complainant herself is highly educated and has studied up to M. A. Before the marriage, she was working as a Teacher and also taking tuitions and was earning more than Rs. 25,000/- per month. After leaving the matrimonial home, she again has joined some school as a Teacher and taking tuitions. Thus, the claim of the Appellant/Complainant for interim maintenance is refuted.

7. Ld. Metropolitan Magistrate vide the impugned order dated 31.01.2019 has observed that the Appellant/Complainant was admittedly M. A. whereas the Respondent was only 10th pass. Moreover, the Appellant/Complainant was unable to show that Respondent was earning Rs. 2 lacs per month or was owner of NEELAM Vs. VIJAY MATTA immovable properties. On the other hand, he has a legal duty to maintain his minor children from his first marriage. No plausible reason has been cited by the Appellant/Complainant for her unemployment despite being much more qualified than the Respondent and also does not have any children to justify her sitting idle at home. The Respondent is shown to be earning not more than Rs. 6,000/- per month and hence the Court found no reason to grant the interim maintenance to the Appellant/Complainant.

8. Aggrieved by the said order, the present appeal has been filed.

9. It is submitted in the appeal that various documents filed on record by the Appellant/Complainant clearly show that Respondent is owner of immovable properties and is running a business of crockery. The Respondent is having a flourishing business of crockery and is having a bank account in Bank of India. The document i.e. electricity bill of a shop in name of the respondent and other documents have been completely ignored by the Ld. Metropolitan Magistrate. Moreover, even though Appellant/ Complainant is more qualified it is the obligation of the Respondent, being the husband to maintain her as she has no means to sustain herself and is presently being supported by her aged parents who are senior citizens. Furthermore, the Appellant/ Complainant married the Respondent because he was having a flourishing personal as well as family business. The Respondent has wrongly claimed to be an employee of his brother when in fact he is the owner. Moreover, both the children from his first marriage have NEELAM Vs. VIJAY MATTA become adults. The Ld. Metropolitan Magistrate has wrongly denied the interim maintenance to the Appellant/Complainant.

10. Ld. Counsel for the Appellant/Complainant has argued that even though the Appellant/Complainant was M. A. but she is not doing any job. Merely because she is more qualified cannot be a reason for the husband to not maintain his wife especially when there is no evidence to show that she has any independent income. The maintenance has been wrongly denied to the Complainant. It is submitted that the impugned order be set aside and interim maintenance be granted to her.

11. Ld. Counsel for the Respondent has vehemently argued that the Respondent is barely 10th pass and is having two children from the first marriage to maintain. He is employed in a crockery shop owned by his younger brother which is being run in a rented premises and he is getting a meager salary of Rs. 6000/pm. The Respondent has no bank account. It is submitted that the Ld. Metropolitan Magistrate has rightly observed that the being highly qualified having done M. A. the Complainant has no reason to sit idle which is non utilisation of her educational qualification. The interim maintenance has rightly been declined to the Appellant/ Complainant and the present appeal is liable to be dismissed.

12. I have heard the arguments and perused the record. My observations are as under:

13.It is not in dispute that the Appellant/Complainant is the legally wedded wife of the Respondent and that they have no children from NEELAM Vs. VIJAY MATTA their wedlock. There are allegations of physical and mental torture made against the respondent. There is domestic relationship between the parties and entitling the Appellant/Complainant to claim monitory relief as well as compensation under the Act.

14.The first aspect for consideration is whether the Appellant/ Complainant being much more qualified than the Respondent who is barely 10th pass, is not entitled to claim maintenance.

15.In Binita Dass vs. Uttam Kumar, Crl. Rev. P. No. 659/2017 Hon'ble High Court of Delhi in its Judgment dated 09.08.2019 observed that capacity to earn and actual earning are two different things. Hon'ble Supreme Court of India in Shailja & Another vs. Khobhanna (2018) 12 SCC 199 explained that whether the wife is capable of earning or whether she is actually earning are two different requirements. Qualification of the wife and her capacity to earn cannot be a ground to deny interim maintenance to a wife, who is dependent and does not have any source of income.

16.Hon'ble Supreme Court of India in Bhuwan Mohan Singh vs. Meena, (2015) 6 SCC 353 has observed that the concept of sustenance does not necessarily mean to lead the life of an animal, feel like an unperson to be thrown away from grace and roam for her basic maintenance somewhere else. She is entitled in law to lead a life in the similar manner as she would have lived in the house of her husband. It is the obligation of the husband to see that the wife does not become a destitute, a beggar. A situation is not to be maladroitly created where under she is compelled to resign to her NEELAM Vs. VIJAY MATTA fate and think of life "dust unto dust". It is the sacrosanct duty to lend financial support even if he is required to earn money with physical labour, if he is able bodied. The husband cannot escape from his responsibility of maintenance towards his wife.

17.Therefore, merely because the Appellant/Complainant is M. A. cannot be a ground to deny her interim maintenance. There has to be some evidence to show that she is employed and has an income sufficient to sustain her. The Respondent had claimed that Appellant/Complainant used to work as a Teacher and take tuitions before marriage and has started working again after separation. However, except bald assertions there is no prima facie evidence in regard to the earnings of the complainant. The respondent has failed to give any details or particulars of her job. There is nothing on record from where it can be concluded that Appellant/Complainant is earning. Merely because wife is more qualified cannot be a ground to disqualify her from getting maintenance and she cannot be compelled to take up a job especially when there is no prima facie proof of her ever being in employment.

18.Having held that Appellant/Complainant has no independent source of income, Respondent being the husband has legal, moral and social obligation to provide for the maintenance of the wife. The question which thus arises is what is the earning of the Respondent and what amount should be paid to the Complainant/Wife for her maintenance.

NEELAM Vs. VIJAY MATTA

19.The Appellant/Complainant had claimed that the Respondent owns several go-downs, houses and shops in Udaipur, Rajasthan. However, no cogent evidence to this effect, except the electricity bill in the name of the Respondent in respect of Shop No. 11, Jhule Lal Bhawan, Udaipur, Rajasthan has been filed. The electricity meter in the name of the Respondent installed in the shop may be sufficient to show his possession but no inference of his being the owner of the shop can be drawn. Likewise, though the Appellant/ Complainant has claimed that he is the owner of many houses but no details whatsoever have been given of the houses and go-downs. At this stage, the Appellant/Complainant has not been able to show that the Respondent is having multiple properties in his name.

20.The other document relied upon by the Appellant/Complainant is Obituary in the newspaper of Sh. Manohar Lal Ji Matta, father of the respondent in which there is mention of four business, but there is nothing to show that any of these businesses are owned by the Respondent, especially when there are other brothers of the respondent as well.

21.The Respondent, on the other hand, has placed on record the Registration Certificate in the name of M/s Jitendra Crockery House, Udaipur, Rajasthan of which Sh. Bansilal Matta, his brother has been shown to be the sole proprietor. Respondent has filed the affidavit of his brother Sh. Bansilal, who has stated that Respondent is working with him at his shop for which he is being given Rs. 6,000/- per month.

NEELAM Vs. VIJAY MATTA

22.From the document relied upon by both the parties, there cannot be any inference drawn of the Respondent being the owner of business of crockery or having huge earnings in the sum of Rs. 2 lacs, as alleged by the Appellant/Complainant. There is prima facie record to show that he is working with his brother in the crockery business. It is difficult to believe that he would be getting barely Rs. 6,000/- as his salary. In such like cases where both the parties are not forthcoming in their pleadings as well affidavit of income, the court has no option but to do a guess work and draw assumptions on the basis of surrounding circumstances. Even, if it is accepted that he is working as an employee of his brother, it could reasonably be expected and assumed that he may be getting an amount between Rs. 15,000/- to Rs. 20,000/- per month.

23.The son of the Respondent may have been major, but he also has a younger daughter and his responsibility towards both the children does not cease even if one child has become an adult. He is also required to maintain himself. The responsibility of the respondent to maintain himself and his two children cannot be overlooked. Thus balancing the responsibility of respondent towards his wife on one hand and towards himself and his children it is considered that Rs.4000/-p.m. to be appropriate amount to be given to the respondent as maintenance.

24.In view of above, the impugned Order dated 31.01.2019 is set- aside and Appellant is awarded maintenance in the sum of NEELAM Vs. VIJAY MATTA Rs. 4,000/- per month from the date of filing of the application under Section 23 of the Domestic Violence Act.

25. Trial Court Record be sent back along with a copy of this order.

26. Appeal file be consigned to Record Room.

Announced in the open court (NEENA BANSAL KRISHNA) on 01.03.2021 Principal District & Sessions Judge, South East, Saket Courts, New Delhi NEELAM Vs. VIJAY MATTA